

Plaintiffs' counsel are ordered to submit a compliance statement, preferably a declaration of the distributions by the administrator, at least ten court days before the compliance hearing date. Five percent of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

13. 1:30 PM CASE NUMBER: C23-02878
CASE NAME: GUADALUPE HARO VS. YEZENIA HARO
COMPLETE CONSOLIDATION OF CASE NO. C23-02878 WITH CASE NO. C26-00880
FILED BY: ZCA HOMES LLC
TENTATIVE RULING:

These two actions concern ownership of the same residential property. Defendant and plaintiff in intervention ZCA Homes LLC moves to consolidate the two actions for all purposes. The motion is unopposed, and it is well taken. The motion is therefore **granted**. The consolidated case will proceed under the older docket number (C23-02878) and will remain assigned for all purposes to Department 16.

14. 1:30 PM CASE NUMBER: C23-03161
CASE NAME: ALISCHA WILSON VS. INTEX RECREATION CORP.,
PERLIMINARY APPROVAL OF CLASS ACTION SETTLEMENT ADVANCED
FILED BY:
TENTATIVE RULING:

In its order of July 22, the Court directed the attorneys to resubmit an amended stipulation by August 19. No such amended stipulation has been filed. The motion for preliminary approval is therefore **continued** to September 30, 2026, at 9:00 a.m. The amended stipulation must be filed by September 18. If no stipulation can be reached, the attorneys should file a joint statement to the Court by that date, identifying the point(s) of disagreement and advising on the status of the proposed settlement.

15. 1:30 PM CASE NUMBER: C24-01011
CASE NAME: IDAHO PACIFIC LUMBER COMPANY, INC. VS. BIARRITZ RESOURCES, LLC
FILED BY IDAHO PACIFIC LUMBER COMPANY, INC.
FILED BY:
TENTATIVE RULING:

The motion for summary judgment or, in the alternative, summary adjudication, filed by plaintiff, Idaho Pacific Lumber Company, Inc. ("IdaPac") against The Cincinnati Insurance Company ("CIC"), is **denied**, as discussed below.

I. Background

CY Pittsburg Investors, LLC ("Owner") held title to the real property located at 1001 and 999 Center Drive, Pittsburg, California 94565 (identified as assessor's parcel number 086-100-047) from November, 2022 until July, 2024. (SSUMF, Fact. No. 1, and defendants' responses.) In February 2023,

Buffalo Construction, Inc. ("Buffalo") entered into a subcontract with Blackstone Development, Inc. for the construction of a work of improvement known as the "Courtyard by Marriott." (SSUMF, Fact. No. 2, and defendants' responses.) On April 3, 2023, IdaPac entered into a credit application with Biarritz Resources, LLC ("Biarritz"). (SSUMF, Fact. No. 3, and defendants' responses.) IdaPac and Biarritz executed an "Order Confirmation" dated May 11, 2023, pursuant to which Biarritz purchased lumber and other construction materials. (SSUMF, Fact. No. 4, and defendants' responses.)

The Order Confirmation provides that payment is due 30 days from the "cut-off date(s)" with a 1.5% monthly finance charge assessed of amounts past due. (SSUMF, Fact. No. 5, and defendants' responses.) Beginning May 26, 2023 and continuing through October 2023, IdaPac supplied materials that were incorporated into the project, and which were specifically furnished for use at the property, were actually used for the work of improvement at the property, and directly benefitted and improved the property, though for part of this time (August through October), the materials deliveries were made to another contractor who had replaced Blackstone after it was terminated. (SSUMF, Fact. No. 6, and defendants' responses.)

IdaPac contends, and CIC does not dispute, that IdaPac supplied Biarritz with the materials at the agreed upon price of \$863,037.68, and that such materials were reasonably valued at \$863,037.68. (SSUMF, Fact. No. 7, and CIC response.) Blackstone disputes this fact, asserting that any deliveries made from August through October were made to the replacement contractor, further that there is no evidence of any contract with that replacement contractor. (SSUMF, Fact. No. 7, and Blackstone's response.)

IdaPac invoiced Biarritz the cost of the materials. (SSUMF, Fact. No. 8, and defendants' responses.) IdaPac provided the first shipment on or around May 26, 2023. (SSUMF, Fact. No. 9, and defendants' responses.) On May 31, 2023, within 20 days of the date that IdaPac provided the first shipment, IdaPac caused to be served a Preliminary 20-Day Notice on the Owner, Buffalo, and Commercial Bank of California via certified mail with a return receipt. (SSUMF, Fact. No. 10, and defendants' responses.) The 20-Day Notice identified each recipient's name and address, described the site of the project, provided a general description of the work, listed the entity with whom IdaPac had contracted, and set forth an estimate of \$1,070,000.00 for the work. (SSUMF, Fact. No. 11, and defendants' responses.)

IdaPac contends that, after applying all offsets and credits, a principal amount of \$325,834.65 for that materials that IdaPac provided remains due and owing. (SSUMF, Fact. No. 12, and CIC response.) Blackstone disputes this fact, asserting that it was replaced by another contractor in August, and there is no evidence of any agreement with that contractor. (SSUMF, Fact. No. 12, and Blackstone's response.) IdaPac contends that the materials it supplied (after applying all appropriate offsets and credits) were reasonably valued at \$325,834.65. (SSUMF, Fact. No. 13, and CIC response.) Blackstone disputes this fact based on it having been replaced on the project. (SSUMF, Fact. No. 13, and Blackstone's response.)

On February 9, 2024, IdaPac recorded a mechanic's lien on the property at the Contra Costa Recorder's Office for the sum of \$325,834.65. (SSUMF, Fact. No. 14, and defendants' responses.) Within 30 days prior to recording the mechanic's lien, no notice of completion or notice of cessation of labor had been recorded. The Project was also not complete and labor on it was ongoing at the time IdaPac recorded its lien. (SSUMF, Fact. No. 15, and defendants' responses.) Buffalo obtained a Bond for Release of Mechanic's Lien from The Cincinnati Insurance Company for \$407,293.31, and recorded it on February 20, 2024 with the Contra Costa Recorder's Office. (SSUMF, Fact. No. 16, and

defendants' responses.)

IdaPac filed the complaint herein on April 10, 2024. (SSUMF, Fact. No. 17, and defendants' responses.) IdaPac contends that the interest it is owed from February 9, 2024 through the present hearing date (8/26/26), rounded down, totals \$58,052.12. (SSUMF, Fact. No. 18, and CIC response.) Blackstone disputes this fact, again based on it having been replaced on the project. (SSUMF, Fact. No. 18, and Blackstone's response.) On June 25, 2024 Blackstone answered, denying all material allegations. On September 25, 2024, CIC filed its answer, also generally denying all material allegations.

Plaintiff now moves for summary judgment "or, in the alternative, summary adjudication" to foreclose on its lien. (Because only the first cause of action is asserted against CIC, this motion is one for judgment against CIC; adjudication is not an "alternative" requiring any separate analysis.) In support of the motion, plaintiff submits a memorandum of points and authorities, a separate statement of undisputed material facts, declarations by Anthony Froyd and Sarah Soule, a request for judicial notice, and a declaration from counsel, Sean J. Filippini.

Both Blackstone and CIC have filed oppositions. They argue IdaPac is not entitled to a mechanics lien because it does not qualify as a "material supplier" or "subcontractor" under Civil Code, § 8400, which lists "persons entitled to lien right." In its reply papers, IdaPac objects to the evidence submitted in opposition and argues the Blackstone opposition papers should not be considered.

II. Standard

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*), fn. omitted.) "[A] plaintiff bears the burden of persuasion that 'each element of' the 'cause of action' in question has been 'proved,' and hence that 'there is no defense' thereto. (Code Civ. Proc., § 437c, subd. (o)(1).)" (*Aguilar, supra*, 25 Cal.4th at 850.)

If the moving plaintiff meets its initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact, the burden shifts to the defendant "to make a prima facie showing of the existence of a triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at 850.) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Ibid.*, fn. omitted.)

A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

III. Evidentiary Matters

In support of the motion, plaintiff requests judicial notice of the two recorded quitclaim deeds (to the Owner and from the Owner). The request is **granted**.

CIC has requested judicial notice of (1) a complaint (without exhibits) filed by Blackstone Development Inc. in *Blackstone Development, Inc. v. Maxon, et al.*, Contra Costa Superior Court Case number C23-02317, and (2) a stipulation and order entered on May 10, 2025 in that same proceeding. The request is **granted**.

Plaintiff's objections to evidence are ruled on as follows:

1. Overruled
2. Overruled
3. Sustained - hearsay
4. Overruled
5. Overruled
6. Overruled
7. Overruled
8. Overruled
9. Overruled
10. Sustained - hearsay
11. (See No. 10)
12. (See No. 10)
13. (See No. 10)

IV. Discussion

A. Blackstone's Opposition Papers May Be Considered

IdaPac argues Blackstone lacks standing to oppose the motion here, and that its opposition papers may not be considered. The reply acknowledges that a recent appellate decision, *Bean v. City of Thousand Oaks* (2025) 114 Cal.App.5th 775, wherein the court held that a party not named in a cause of action may still oppose a summary judgment motion, but plaintiff argues that standing depends upon the opposing party having an "adverse interest." (*Id.*, at 783.) Here, Blackstone is a defendant in this action and the party that, according to plaintiff's own complaint, is an alter-ego of Biarritz, the company with whom plaintiff contracted for the amounts now claimed. Plaintiff alleges that Blackstone, among other defendants, has "refused to pay Plaintiff all of the amount owed." (Complaint, ¶13.) Any finding in plaintiff's favor here would likely be binding on Blackstone under principles of collateral estoppel. Accordingly, the Court finds Blackstone to be a sufficiently "adverse party" to permit it standing to oppose summary judgment.

B. Initial Burden

IdaPac contends its burden here consists of showing:

- (1) It provided materials for a "work of improvement" to real property;
- (2) it held a California contractor's license to perform the work;
- (3) it gave preliminary notice to the owner before beginning work;
- (4) The value of the labor or materials provided;
- (5) That a mechanic's lien was duly recorded; and
- (6) That an action to foreclose the lien and/or enforce the Bond was timely filed.

(Memorandum of Points and Authorities in Support of Motion, 6:18-26.)

This characterization glazes over the statutory definition for who is entitled to a mechanic's lien. The full text of California Civil Code, section 8400 (which appears under the title, "persons

entitled to lien right”), is as follows:

A person that provides work authorized for a work of improvement, including, but not limited to, the following persons, has a lien right under this chapter:

- (a) Direct contractor.
- (b) Subcontractor.
- (c) Material supplier.
- (d) Equipment lessor.
- (e) Laborer.
- (f) Design professional.

California Civil Code, section 8404, goes on to define what is meant by the phrase, “work authorized for a work of improvement,” appearing in section 8400. Section 8404 states:

Work is authorized for a work of improvement or for a site improvement in any of the following circumstances:

- (a) It is provided at the request of or agreed to by the owner.
- (b) It is provided or authorized by a direct contractor, subcontractor, architect, project manager, or other person having charge of all or part of the work of improvement or site improvement.

California Civil Code, section 8046, specifies that a “subcontractor” is “a contractor that does not have a direct contractual relationship with an owner.” It goes on to note that this “includes a contractor that has a contractual relationship *with a direct contractor or with another subcontractor.*” (Emphasis added.)

Parties appear to agree that a “material supplier who supplies a subcontractor with materials is entitled to the benefits of the lien law.” (Reply, 4:8-10, citing Opposition, 7:5-6.) They also appear to agree that if Biarritz is a subcontractor, IdaPac is unquestionably a material supplier with lien rights.

IdaPac does not directly admit that *absent* Biarritz being a subcontractor, it has *no* lien rights, but through the discussion of alter ego, IdaPac appears to recognize the requirement.

As IdaPac points out, there is evidence to this point. (See Declaration of Anthony Froyd in Support of Motion, Compendium Ex. 3, hereinafter “Froyd Decl.,” Ex. D [Order Confirmation with “Joint Check Agreement” on page 10]; Declaration of Sarah Soule in Support of Motion, Compendium Ex. 2, ¶¶3-5 [stating IdaPac viewed the Joint Check Agreement referring to Biarritz as “subcontractor” as a representation that it was a subcontractor].)

Looking just to the evidence presented in support of the moving papers, however, this evidence is not without some contradiction. Other papers submitted by IdaPac show Biarritz was not actually a subcontractor. For example, the Owner’s contract for construction of a Courtyard by Marriott hotel was with general contractor Buffalo, not Blackstone or Biarritz. The subcontract through which IdaPac claims rights is between Buffalo and Blackstone, not Buffalo and Biarritz. (Froyd Decl., Ex. B.) Biarritz itself was a supplier or “contract wholesaler,” not necessarily a subcontractor. (Froyd Decl., Ex. C [credit application]; *Slatkin v. White* (2002) 102 Cal.App.4th 963, 968).

Even without considering the opposition papers, the moving papers do not sufficiently

establish that Biarritz was a subcontractor as a matter of law.

Notably, IdaPac appears to anticipate that CIC's dispute that Biarritz was a subcontractor and offers alter ego evidence. If such a showing is required to show Biarritz is a subcontractor (and it is), IdaPac's contention that alter ego is *not* part of the initial burden is incorrect. The omission of the alter ego showing from the separate statement is, as a matter of procedure, an impediment to granting judgment here.

C. Disputes of Material Fact

Even if the Court were to conclude that IdaPac had met its initial burden (it has not), the opposing papers demonstrate material factual disputes with respect to the issue of alter ego liability. Anthony Froyd, whose declaration here is key to showing alter ego, previously testified at deposition that Blackstone and Biarritz are *separate* companies. (CIC response to SSUMF, Additional Fact Nos. 43-44.)

While IdaPac objects to the testimony on hearsay grounds, and on the grounds that deposition excerpt does not satisfy requirements for the "former testimony" exception, the testimony falls under another exception as it constitutes a "prior inconsistent statement" pursuant to Evidence Code, section 1235. Further, the testimony directly contradicts Froyd's statements that support an alter ego theory.

Because IdaPac has shown that it provided materials pursuant to a contract with Biarritz, which is not necessarily a subcontractor, it remains a question of fact whether IdaPac was instructed to provide materials by anyone described in Civil Code section 8404, subdivision (b).

Though the Court need not reach the question in this ruling, assuming IdaPac can establish a theory of alter ego liability, IdaPac will still be required to establish that it can assert such theory (involving the lack of separate identity between Blackstone and Biarritz) against Buffalo, which CIC contends was an "innocent third party."

16. 1:30 PM CASE NUMBER: C24-03039

CASE NAME: MELANIE ROSE VS. FIRST WALNUT CREEK MUTUAL

***HEARING ON MOTION IN RE: RECONSIDER COURT'S SUA SPONTE CONSOLIDATION ORDER OR ALTERNATIVE RELIEF UNDER CCP 473(B)**

FILED BY: ROSE, MELANIE

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Melanie Rose's Motion Reconsideration of the Court's January 26, 2026, sua sponte order consolidating Case No. C24-03039 with Case No. C25-02665, which was made during a case management conference.

For the reasons set forth below Plaintiff's Motion for Reconsideration is **denied**. The Court clarifies that Case No. C24-03039 and Case No. C25-02665 are **consolidated only for the purposes of trial**.

Procedural and Factual Background

During a case management conference on January 26, 2026, the Court, on its own motion, issued an order to consolidate Case No. C24-03039 with Case No. C25-02665, which was made during a case